

discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department or Court clerk. No appearance is required on June 3, 2026.

Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.

Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b). Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.

14. 9:00 AM CASE NUMBER: C25-00694
CASE NAME: ELIZABETH HILAMAN VS. MCDONALD'S USA, LLC
HEARING ON SUMMARY MOTION FILED BY DEFT MCDONALDS CORPORATION
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant McDonald's Corporation's Motion for Summary Judgment, or in the alternative, Summary Adjudication ("MSJ").

Defendant McDonald's Corporation's MSJ is **denied as moot**, as explained below.

Allegations of the Complaint

On September 11, 2023, Plaintiff went through the drive-thru of a McDonald's restaurant located at 4440 Lone Tree Way, Antioch, California (the "Store"). (§§ 7, 22.) She purchased a hot tea. (§ 22.) As the tea was being passed to Plaintiff in her vehicle, the lid popped off the cup. (*Ibid.*) The hot liquid spilled onto Plaintiff's lap, causing burns. (*Ibid.*)

Plaintiff filed her complaint on March 12, 2025, against Defendants McDonald's Corporation and Bay Area Restaurant Management Corporation ("BARM"). McDonald's is alleged (on information and belief) to own, operated, manage, and control the Store. (§ 7.) It is alleged that BARM is a franchisee of Defendant McDonalds, and that it also owned, operated, managed, and controlled the Store. (§§ 8-9.)

Based on the above, Plaintiff alleges two causes of action against moving Defendant McDonalds Corporation: (1) negligence, and (2) products liability.

Initial Consideration – Lack of Filed Opposition

Defendant McDonald's filed its MSJ on February 9, 2026 – the same date Defendant BARM filed its own separate MSJ.

On May 14, 2026, the Court received several documents from Plaintiff. Two documents were **filed** with the Court: (1) Plaintiff's Opposition to Defendant's Motion for Summary Judgment, or in the Alternative, Summary Adjudication; Memorandum of Points and Authorities; **Redacted** Declaration of Shantel Yaghobbian, Esq. and **Redacted** Exhibits Pursuant to Protective Order; and (2) Plaintiff's Separate Statement in Opposition to Defendant's Motion for Summary Judgment; Filed Pursuant to Protective Order. (emphasis added.)

Two other documents were **lodged** with the Court: (1) Plaintiff's Opposition to Defendant's Motion for Summary Judgment, or in the Alternative, Summary Adjudication; Memorandum of Points and Authorities; Declaration of Shantel Yaghobbian and Exhibits; Conditionally Filed Under Seal Pursuant to Protective Order; and (2) Plaintiff's Separate Statement in Opposition to Defendant's Motion for Summary Judgment; Conditionally Filed Under Seal Pursuant to Protective Order.

All the above documents indicate that they are related to Plaintiff's Opposition to "Defendant's" – singular – MSJ. They do not, however, indicate which Defendant's MSJ they are directed toward. The introduction of each memorandum begins by stating that the "Defendant asks this Court..." to grant their MSJ. The Conclusions also vaguely ask that the Court "deny Defendant's" MSJ – without indicating which Defendant's MSJ is being addressed.

In reviewing the **filed** documents, the Court noted that the opposition to the Separate Statement indicating that Plaintiff submitted the "following Separate Statement in Opposition to Defendant Bay Area Restaurant Management Corporation's Motion for Summary Judgment." (All caps removed.) A review of the opposition to the Separate Statement **lodged** with the Court has the exact same statement. Both documents also address the 24 UMFs submitted by BARM. It is worth noting that McDonald's Separate Statement only included 22 UMFs – most of which are different from those in BARM's Separate Statement.

The Court took the above to indicate that Plaintiff was only opposing **one** of the MSJs – that filed by BARM. As Plaintiff did not file a motion to file documents under seal, it appeared she was attempting to comply with California Rule of Court 2.551 by lodging documents conditionally under seal.

Rule 2.551 states, in pertinent part:

(A) A party that files or intends to file with the court, for the purposes of adjudication or to use at trial, records produced in discovery that are subject to a confidentiality agreement or protective order, and does not intend to request to have the records sealed, must:

(i) Lodge the unredacted records subject to the confidentiality agreement or protective order and any pleadings, memorandums, declarations, and other documents that disclose the contents of the records, in the manner stated in (d);

(ii) File copies of the documents in (i) that are redacted so that they do not disclose

the contents of the records that are subject to the confidentiality agreement or protective order; and

(iii) Give written notice to the party that produced the records that the records and the other documents lodged under (i) will be placed in the public court file unless that party files a timely motion or application to seal the records under this rule.

As the Rule makes clear, a party must both **lodge** unredacted records (so the Court has access to the complete documents) and **file** redacted copies of those same documents. Notice to the other side is also required – and it is worth noting that the Court has no evidence that Plaintiff provided Defendant McDonald’s with the written notice required by 2.551 (3)(A)(iii) above.

When the Court reviewed the lodged version of the documents – they appeared to track the filed opposition to BARM’s MSJ. As such, the Court initially reviewed BARM’s MSJ as being opposed (see line 15), and McDonald’s MSJ as unopposed (see below.)

McDonald’s Reply indicates they were likewise confused by Plaintiff’s submissions. McDonald’s does, however, indicate that Plaintiff did serve two separate Opposition memoranda – while not differentiating between them (*i.e.* neither title, nor the body of either ‘Opposition’ indicate as to which Defendant’s MSJ it is directed.) McDonald’s indicates that the opposition memoranda “were nearly identical but for a few sentences.” (Reply at 2: 8-9.) This appears to relate to the filed document and the lodged document.

McDonald’s argues (in part) that Plaintiff has failed to properly oppose its MSJ because she failed to file an opposition separate statement. Not only did Plaintiff fail to file (or lodge) an opposition separate statement in response to McDonald’s MSJ, but she also failed to **file** any opposition papers. An opposition memorandum is also a required document when opposing an MSJ. (Cal. R. Ct. 3.1350 (e).) As outlined above, Plaintiff filed her opposition to BARM’s MSJ along with her opposition separate statement. There is no document **filed** with the Court that consists of an opposition memorandum in response to McDonald’s MSJ.

The above discussion is moot based on the Plaintiff’s subsequent filing of Amendment to Complaint. However, Plaintiff is cautioned that she must abide by the Code and Rules when submitting documents to the Court and is required to **file** documents it wants the Court to consider. Documents not **filed** with the Court may be disregarded in the future. Also, making sure the title of the document properly identifies **which** defendant’s motion is being opposed will assist everyone.

Analysis

On May 15, 2026, Plaintiff filed an Amendment to Complaint wherein she indicated that she ‘incorrectly named’ McDonald’s Corporation in the Complaint. She then indicates that she discovered the ‘true name of the defendant to be’ McDonald’s USA, LLC and therefore “amends the complaint by substituting the true name [McDonald’s USA, LLC] for the incorrect name [McDonald’s Corporation] wherever it appears in the complaint.” In essence, Plaintiff has dropped her case against moving Defendant McDonald’s Corporation.

"An ‘amended’ complaint supersedes all prior complaints. . . . The original ceases to ‘perform any function as a pleading.’” [Citation omitted.]” (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215

[quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884].) “Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint. [Citation.]” (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 [motion for summary adjudication moot based on filing of amended complaint].) “The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment.” (*Ibid.*)

Conclusion

Based on the above, Defendant McDonald’s Corporation’s Motion for Summary Judgment is **denied as moot**. Plaintiff no longer has any claims against McDonald’s Corporation as of the filing of the of the Amendment to Complaint, which as approved by this Court on May 15, 2026.

15. 9:00 AM CASE NUMBER: C25-00694
CASE NAME: ELIZABETH HILAMAN VS. MCDONALD'S USA, LLC
HEARING ON SUMMARY MOTION FILED BY DEFT BAY AREA RESTAURANT MANAGEMENT CORPORATION
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Bay Area Restaurant Management Corporation’s Motion for Summary Judgment, or in the alternative, Summary Adjudication (“MSJ”).

Allegations of the Complaint

On September 11, 2023, Plaintiff went through the drive-thru of a McDonald’s restaurant located at 4440 Lone Tree Way, Antioch, California (the “Store”). (§§ 7, 22.) She purchased a hot tea. (§ 22.) As the tea was being passed to Plaintiff in her vehicle, the lid popped off the cup. (*Ibid.*) The hot liquid spilled onto Plaintiff’s lap, causing burns. (*Ibid.*)

Plaintiff filed her complaint on March 12, 2025, against Defendants McDonald’s Corporation and Bay Area Restaurant Management Corporation (“BARM”). It is alleged that BARM is a franchisee of Defendant McDonald’s, and that it owned, operated, managed, and controlled the Store at all relevant times. (§§ 8-9.)

Based on the above, Plaintiff alleges two causes of action against moving Defendant BARM: (1) negligence, and (2) products liability.

Standard for Continuance of Summary Judgment

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” (Code Civ. Proc. § 437c(h).) If the showing required under Code of Civil Procedure § 437c(h) is made, relief is nearly mandated because the stakes in a summary judgment motion are so high. (*Chavez v. 24 Hour Fitness USA, Inc.* (2015) 238 Cal.App.4th 632, 643; *Insalaco v. Hope Lutheran Church of West Contra*